

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Peter Hoy (S7)	Team: Team # 5	CCRB Case #: 201016027	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 11/20/2010 6:47 PM	Location of Incident: in front of and inside § 87(2)(b)	Precinct: 81	18 Mo. SOL 5/20/2012	EO SOL 5/20/2012	
Date/Time CV Reported Sun, 11/21/2010 6:38 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 11/21/2010 6:38 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jonathan Blatt	12314	946787	PBBN
2. POM Favio Quizhpi	08682	948119	PBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Timothy Rogers	02465	933285	PBBN
2. POM Alan Ye	01313	940930	081 PCT
3. POF Aisha Morales	30019	934382	081 PCT
4. POM Christophe Koenke	09046	916016	081 PCT
5. POM Peter Colombini	03403	938250	081 PCT
6. POM Stephen Yee	08864	942732	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Jonathan Blatt	Abuse: In front of § 87(2)(b) in Brooklyn, PO Jonathan Blatt frisked § 87(2)(b)	§ 87(2)(b)
B.POM Jonathan Blatt	Force: Inside § 87(2)(b) in Brooklyn, PO Jonathan Blatt struck § 87(2)(b) with a blunt instrument.	§ 87(2)(b)
C.POM Favio Quizhpi	Force: Inside § 87(2)(b) in Brooklyn, PO Favio Quizhpi used physical force against § 87(2)(b)	§ 87(2)(b)
D.POM Favio Quizhpi	Force: In front of § 87(2)(b) in Brooklyn, PO Favio Quizhpi used physical force against § 87(2)(b)	§ 87(2)(b)
E.POM Jonathan Blatt	Force: In front of § 87(2)(b) in Brooklyn, PO Jonathan Blatt used physical force against § 87(2)(b)	§ 87(2)(b)

Case Summary

On November 20, 2010, § 87(2)(b) filed a complaint with the Internal Affairs Bureau, generating IAB log number § 87(2)(b) (encl. 3C). On November 21, 2010, § 87(2)(b) filed a complaint through the Civilian Complaint Review Board's call processing system regarding the same incident (encl. 3D-F).

On November 20, 2010, at 6:53 p.m., § 87(2)(b) was arrested at § 87(2)(b) in Brooklyn. The following allegations resulted:

- **Allegation A - Abuse of Authority: In front of § 87(2)(b) in Brooklyn, PO Jonathan Blatt frisked § 87(2)(b) § 87(2)(g)**
§ 87(2)(b)
§ 87(2)(b)
- **Allegation B - Force: Inside § 87(2)(b) in Brooklyn, PO Jonathan Blatt struck § 87(2)(b) with a blunt instrument. § 87(2)(g)**
§ 87(2)(b)
§ 87(2)(b).
- **Allegation C - Force: Inside § 87(2)(b) in Brooklyn, PO Favio Quizhpi used physical force against § 87(2)(b) § 87(2)(g)**
§ 87(2)(b)
§ 87(2)(b).
- **Allegation D - Force: In front of § 87(2)(b) in Brooklyn, PO Quizhpi used physical force against § 87(2)(b) § 87(2)(g)**
§ 87(2)(b)
§ 87(2)(b).
- **Allegation E - Force: In front of § 87(2)(b) in Brooklyn, PO Blatt used physical force against § 87(2)(b) § 87(2)(g)**
§ 87(2)(b)
§ 87(2)(b)

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

- § 87(2)(b) on the date of incident, § 87(2)(b) is a black male, stands five feet and eleven inches, weighs 200 pounds and has black hair and brown eyes. § 87(2)(b)
§ 87(2)(b)

CCRB Testimony

On December 13, 2010, § 87(2)(b) was interviewed at the CCRB (encl. 3H-J). § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

On November 20, 2010, at what § 87(2)(b) estimated as 8:00 p.m. but the investigation determined to be sometime before 6:47 p.m., § 87(2)(b) and his wife, § 87(2)(b) left their apartment, located at § 87(2)(b) § 87(2)(b) in Brooklyn. Because § 87(2)(b) was not feeling well, he went to take a nap in his vehicle, which was parked in front of their building, while § 87(2)(b) § 87(2)(b) walked to a nearby store. At what the investigation determined to be 6:47 p.m. two uniformed

officers approached, identified by the investigation as PO Jonathan Blatt and PO Favio Quizhpi of Patrol Borough Brooklyn North. § 87(2)(b) described PO Blatt as a white male in his early 30s that was heavyset, stood approximately five feet and ten inches and wore glasses. He described PO Quizhpi as a Hispanic male in his late 20s. PO Blatt opened the car door and shined a flashlight into the car, waking § 87(2)(b). The officers did not open any other doors or enter the vehicle. PO Blatt asked if § 87(2)(b) was all right and § 87(2)(b) explained that he had not been feeling well. PO Blatt told him to take some cough medicine, and the officers then walked away.

As the officers walked away, § 87(2)(b) exited his car and called after them, “You need to take some cough medicine.” The officers walked back towards § 87(2)(b) and PO Blatt told § 87(2)(b) to turn around and frisked him. When PO Blatt asked § 87(2)(b) for ID, § 87(2)(b) explained he did not have it with him and asked if he could go get it from his apartment. The officers agreed to let him, and followed him into his building hallway, where they encountered his daughter, § 87(2)(b). § 87(2)(b) asked § 87(2)(b) to get his ID from their apartment because the officers would not allow him to go into the apartment himself. She went into the apartment, but soon returned without the ID. PO Blatt then struck § 87(2)(b) in the back of the head, knocking him unconscious. § 87(2)(b) did not know what prompted PO Blatt to strike him. § 87(2)(b) could not tell what he was struck with. When § 87(2)(b) regained consciousness, he was on the floor and PO Quizhpi was saying, “He’s faking, he’s faking.” The officers lifted § 87(2)(b) to a standing position and handcuffed him. At the time this happened, two witnesses were in the hallway: § 87(2)(b) whose address is unknown, and § 87(2)(b) who lives in the basement of the building.

§ 87(2)(b) said his recollection of everything that happened next is limited by the fact that he felt dazed after being knocked unconscious. PO Blatt or PO Quizhpi escorted § 87(2)(b) out of the hallway, down the building’s front steps and to the gate in front of the building, where either PO Blatt or PO Quizhpi placed their foot in front of § 87(2)(b) leg, causing § 87(2)(b) to trip and fall to the ground. PO Blatt then punched § 87(2)(b) twice on the right side of his head while PO Quizhpi held him down, scraping his face against the ground, causing an abrasion on the left side of his forehead.

§ 87(2)(b) was then transported in a marked police van to the 81st Precinct stationhouse. When he left the location, there were approximately eight police cars on the scene. An ambulance came to the stationhouse and treated § 87(2)(b) for head injuries, but § 87(2)(b) refused to go to the hospital because he did not want to prolong the arrest process. He was sent to Brooklyn Central Booking and charged with § 87(2)(b).

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) on the date of incident, § 87(2)(b) is a black female, stands five feet and one inch, weighs approximately 160 pounds and has brown hair and eyes. § 87(2)(b)

CCRB Testimony

On December 13, 2010, § 87(2)(b) was interviewed at the CCRB (encl. 5A-B). § 87(2)(g)

On November 20, 2010, at what § 87(2)(b) estimated as 8:30 p.m., but the investigation determined to be approximately 6:50 p.m., she was walking home when she saw § 87(2)(b) enter their building followed by a police officer. § 87(2)(b) entered directly behind them, where she saw § 87(2)(b) and three police officers, identified by the investigation as PO Quizhpi and PO Blatt and one other unidentified officer. She described PO Blatt as a uniformed white or Hispanic male that was short and heavy set and described PO Quizhpi as a white male in his 30s or 40s that was tall and had a muscular build. § 87(2)(b) could not provide any description of the third officer. § 87(2)(b) and the officers waited in the building’s hallway while § 87(2)(b) entered their

apartment to get § 87(2)(b) ID. When § 87(2)(b) made a motion towards the apartment doorway as though he might enter, PO Blatt hit § 87(2)(b) in the front right side of his head with a pair of handcuffs. § 87(2)(b) fell to the ground, where he lay unconscious for about ten to fifteen minutes.

The officers brought § 87(2)(b) to his feet and handcuffed him. As the officers escorted § 87(2)(b) from the building, § 87(2)(b) repeatedly tried to pull § 87(2)(b) back into the hallway. In response, PO Quizhpi told her to stay back and used two hands to push her shoulder, causing her to stumble backwards, but not fall. Once outside, PO Quizhpi tripped § 87(2)(b) and pushed his head down, scraping it against the ground. § 87(2)(b) did not see any officers strike § 87(2)(b) when they were outside. When § 87(2)(b) went to the stationhouse later that day, she learned that PO Blatt injured his hand during the arrest.

Additional Civilian Statements

§ 87(2)(b) and § 87(2)(b) both provided § 87(2)(b) with hand-written letters (encl. 6A-B) summarizing what they witnessed of the incident. § 87(2)(b) provided copies of these letters to the CCRB. The statements of both § 87(2)(b) and § 87(2)(b) indicated that they saw an officer strike § 87(2)(b) in the head, but the statements did not contain any other significant details concerning the officer that allegedly did this or the circumstances surrounding it.

Attempts to Contact Civilians

§ 87(2)(b) provided contact information for § 87(2)(b) and § 87(2)(b). § 87(2)(b) provided contact information for § 87(2)(b) and a female she knows only as § 87(2)(b). She also provided the name of § 87(2)(b) who she said witnessed the incident, but whose contact information she did not have. No additional contact information for § 87(2)(b) or § 87(2)(b) could be found, and § 87(2)(b) could not be reached at the telephone numbers and addresses provided. § 87(2)(b) was deemed uncooperative after missing an appointment to be interviewed at the CCRB and failing to reschedule, despite the undersigned sending her two letters and calling her five times.

NYPD Statements:

Subject Officer: PO JONATHAN BLATT

- § 87(2)(b) years old on the date of incident, PO Blatt is a white male, stands six feet, weighs 245 pounds and has black hair and brown eyes.
- PO Blatt worked from 5:30 p.m. on November 20, 2010, to 2:05 a.m. November 21, 2010, in uniform and assigned alone to Foot Post 1.

Memo Book

PO Blatt made the following memo book entries related to this incident (encl. 7A): At 6:55 p.m., PO Blatt and PO Quizhpi stopped to see if § 87(2)(b) who was sitting in a car, needed an ambulance; everything seemed to be good and the officers walked away; § 87(2)(b) opened his car door and started screaming, cursing and causing a crowd; § 87(2)(b) spit toward the officers; the officers tried to get his ID, but he did not have any; § 87(2)(b) started walking to § 87(2)(b) disobeyed an order to stop and became violent; as PO Blatt arrested § 87(2)(b) a handcuff lacerated his left thumb. At 7:05 p.m., present at the 81st Precinct.

Complaint and Arrest Reports

§ 87(2)(a) 160.50

Line of Duty Injury Report

In the Line of Duty Injury Report (encl. 9), PO Blatt stated that at the time and place of the incident, while he was attempting to handcuff a resisting perpetrator, his left thumb got caught between the handcuff and the defendant's wrist, causing a laceration that required three stitches to his left thumb.

CCRB Testimony

On May 19, 2011, PO Blatt was interviewed at the CCRB (encl. 10A-C). His statement is summarized below.

At the time and place of incident, PO Blatt and PO Quizhpi, who were assigned to adjoining foot posts, were walking near § 87(2)(b) in Brooklyn. They observed § 87(2)(b) seated in the front passenger seat of a parked vehicle. Because he appeared unconscious, the officers knocked on the window and asked if he needed medical assistance. § 87(2)(b) woke up and indicated that he did not need an ambulance. The officers did not open the car door or enter the vehicle. As the officers walked away, § 87(2)(b) opened the car door, exited and began cursing and screaming, "Why did you wake me up?" Unidentified people in the area exited their houses and watched the exchange. § 87(2)(b) continued yelling and spat towards the officers. Because spitting is an infraction, PO Blatt and PO Quizhpi walked back toward § 87(2)(b) with the intention of issuing him a summons. The officers asked § 87(2)(b) for his ID, which he said was in his apartment. A female family member of § 87(2)(b) approached and volunteered to get his ID from the apartment.

PO Quizhpi went with the female to get the ID while PO Blatt and § 87(2)(b) stayed outside. PO Blatt did not frisk § 87(2)(b) or recall any reason to fear for his safety. § 87(2)(b) asked to sit down, so PO Blatt escorted him to the stoop of his building and instructed him to sit. § 87(2)(b) continued walking up the steps towards his building's entrance despite PO Blatt telling him multiple times to stop. When § 87(2)(b) entered the building, PO Blatt followed him. Inside, § 87(2)(b) encountered PO Quizhpi, who he pushed in the shoulder in what looked like an attempt to get past him. PO Quizhpi blocked § 87(2)(b) from walking further down the hallway and PO Blatt approached § 87(2)(b) and grabbed his right wrist in order to handcuff him.

§ 87(2)(b) approached and interfered with the arrest by standing between PO Blatt and § 87(2)(b). PO Blatt stepped around § 87(2)(b) and did not engage her physically. He again grabbed § 87(2)(b) arm and tried to handcuff him, but § 87(2)(b) pulled his arm away and said something verbally to indicate he was not going to cooperate. PO Blatt then placed his foot in front of § 87(2)(b) and both officers pushed § 87(2)(b) so he fell to the floor, landing on his left side. § 87(2)(b) was handcuffed after being brought to the ground. Around this time, PO Blatt noticed he was bleeding from his thumb, an injury which he believed was caused by his handcuffs. PO Blatt also noticed a crowd forming in the hallway, blocking the exit. PO Blatt called for additional units. PO Blatt did not know which officers responded because he did not recognize them as being from his command. PO Blatt did not recall any other officers assisting with the arrest. PO Blatt denied striking § 87(2)(b) and did not recall that he became unconscious.

After the arrest, Sgt. Timothy Rogers of Patrol Borough Brooklyn North arrived and verified the arrest. PO Blatt did not know who escorted § 87(2)(b) from the building, but it was neither himself nor Sgt. Rogers, with whom he was talking when § 87(2)(b) was removed from the building. PO Blatt did not see § 87(2)(b) fall to the ground as he was escorted to the police car or recall any difficulty in removing him. PO Blatt did not know of any additional force used against § 87(2)(b).

An ambulance came to the 81st Precinct to treat § 87(2)(b) but PO Blatt did not know the details of his injuries. Another officer completed the arrest processing for PO Blatt because PO Blatt had to receive medical treatment for the injury to his hand.

Subject Officer: PO FAVIO QUIZHPI

- § 87(2)(b) years old on the date of incident, PO Quizhpi is a Hispanic male, stands five feet and eight inches, weighs 155 pounds and has black hair and brown eyes.
- PO Quizhpi worked from 5:30 p.m. on November 20, 2010, to 2:05 a.m. on November 21, 2010, in uniform and assigned to Foot Post 2 with PO Blatt.

Memo Book

PO Quizhpi made the following memo book entries related to this incident (encl. 11A-B): At 6:50 p.m., stopped § 87(2)(b) at § 87(2)(b) and arrested him after he attempted to walk away from being issued a summons; PO Blatt assisted in the struggle and is listed as the arresting officer.

Witness Statement - Injury to Member of the Department

According to the witness statement provided by PO Quizhpi on November 21, 2010 (encl. 12), at the time and place of incident, PO Blatt was effecting a lawful arrest and attempting to handcuff a resisting perpetrator when his thumb was caught between the handcuff and the defendant's wrist.

CCRB Testimony

On May 19, 2011, PO Quizhpi was interviewed at the CCRB (encl. 13A-C). § 87(2)(g)

At the time and place of incident, PO Quizhpi and PO Blatt checked to see if § 87(2)(b) needed medical attention. PO Quizhpi knocked on the car window multiple times until § 87(2)(b) woke up. PO Quizhpi asked if he was all right and § 87(2)(b) confirmed that he was. Neither officer opened the door or entered vehicle at any point. As the officers walked away, § 87(2)(b) exited the vehicle and cursed at them, "Why the fuck are you bothering me?" Multiple people on the street and in nearby buildings stopped to watch the exchange. § 87(2)(b) then spit in the officers' direction, prompting the officers to walk back to § 87(2)(b) and ask him for ID so he could be issued a summons for spitting. PO Quizhpi did not recall either officer frisking § 87(2)(b). § 87(2)(b) said his ID was inside § 87(2)(b). While PO Blatt stayed outside with § 87(2)(b), PO Quizhpi walked to § 87(2)(b) with the intention of knocking on the door and confirming that § 87(2)(b) lived there and had not been casing the location. At the entrance of the building, PO Quizhpi encountered a female, identified by the investigation as § 87(2)(b) who volunteered to retrieve § 87(2)(b) ID. When PO Quizhpi entered the hallway of the building with § 87(2)(b), § 87(2)(b) ran in behind him, pushed him his right shoulder in an attempt to get past him and ran towards his apartment. PO Quizhpi grabbed § 87(2)(b) and tried to handcuff him. PO Blatt also entered the building and assisted PO Quizhpi in handcuffing § 87(2)(b). § 87(2)(b) pushed the officers to the wall and refused to put his hands behind back. During the struggle, PO Quizhpi pulled § 87(2)(b) arms behind his back, but did not use any other force. Neither officer struck § 87(2)(b) but during the struggle, while § 87(2)(b) was against the wall, he suddenly fell to the ground, sliding down the wall and landing in a sitting position on the floor. PO Quizhpi did not see § 87(2)(b) hit his head or know why he fell.

The officers handcuffed § 87(2)(b) while he was on the ground. During the handcuffing, a female identified as § 87(2)(b) interfered by pulling on PO Quizhpi's arms and shirt. PO Quizhpi pulled himself away from § 87(2)(b) but did not push her or use any force against her. He warned her she would be arrested if she continued to interfere, at which point she stopped.

PO Quizhpi did not recall which other officers responded to the location or who transported § 87(2)(b) from the scene. § 87(2)(b) blocked the exit as the officers escorted § 87(2)(b) from the building, but PO Quizhpi did not recall any officers using force to get past her. PO Quizhpi did not see § 87(2)(b) fall to the ground again and no officers pushed his face into the ground or punched him in the back. PO Quizhpi went to his foot post after the incident and did not return to the stationhouse.

Subject Officer: PO PETER COLOMBINI

- § 87(2)(b) years old on the date of incident, PO Colombini is a white male, stands five feet and eleven inches, weighs 195 pounds and has brown hair and eyes.
- On November 20, 2010, PO Colombini worked from 3:00 p.m. to 11:35 p.m., in uniform and assigned to patrol Sectors C and D with PO Koenke in marked RMP 4554.

Memo Book

PO Colombini did not make any memo book entries related to this incident (encl. 14A-C).

CCRB Testimony

On August 9, 2011, PO Colombini was interviewed at the CCRB (encl. 15A-B). § 87(2)(g)

On November 20, 2011, at approximately 6:53 p.m., PO Colombini and PO Koenke responded to § 87(2)(b) in Brooklyn as back up. PO Colombini did not have a detailed recollection of the incident, but recalled that he and PO Koenke arrived after § 87(2)(b) had been arrested. He did not witness any officers use force against § 87(2)(b). Neither he nor PO Koenke interacted with § 87(2)(b). PO Colombini could not recall which officers were present during the incident.

Subject Officer: SGT TIMOTHY ROGERS

- § 87(2)(b) years old on the date of incident, Sgt. Rogers is a white male, stands six feet, weighs 165 pounds and has blond hair and blue eyes.
- Sgt. Rogers worked from 5:15 p.m. November 20, 2010, to 2:12 a.m. On November 21, 2010, in uniform and assigned to be the Impact sergeant in marked RMP 2124 with PO Nugent.

Memo Book

Sgt. Rogers made the following memo book entries related to this incident (encl. 16A-C): At 6:45 p.m., assistance requested at § 87(2)(b). At 6:52 p.m., one under arrest by PO Blatt, § 87(2)(a) 160.50.

CCRB Testimony

On August 9, 2011, Sgt. Timothy Rogers was interviewed at the CCRB (encl. 17A-B). § 87(2)(g)

At the time and place of incident, Sgt. Rogers responded to a call for back up. Sgt. Rogers could not recall which other officers were present at the location or if § 87(2)(b) was still at the location when he arrived. He did not interact with § 87(2)(b) or see any officers use force against him. PO Blatt gave him an account of the incident so he could verify the arrest.

Additional Officer Interviews

PO Stephen Yee and PO Alan Ye of the 81st Precinct were interviewed in regards to this investigation (encl. 18A-21B); however, neither officer was present during the incident or had any knowledge of the incident.

Officers Not Interviewed

PO Christopher Koenke and PO Aisha Morales of the 81st Precinct were not interviewed § 87(2)(g)

Medical Records

Medical Treatment of Prisoner Report

The medical treatment of prisoner report (encl. 22A) indicates § 87(2)(b) sustained a head injury during the arrest, but refused treatment when EMS responded to the 81st Precinct stationhouse. No additional information about § 87(2)(b) medical condition is listed on the report.

FDNY Prehospital Care Report

According to the FDNY Prehospital Care Report (encl. 22C-D), on § 87(2)(b), § 87(2)(b) was transported from § 87(2)(b) in Brooklyn to § 87(2)(b) for treatment of a severe headache and dizziness that he said had been worsening since November 20, 2010.

Hospital Records

According to records from § 87(2)(b) (encl. 22F-X), § 87(2)(b) was treated at the hospital on § 87(2)(b), for pain to his head, right knee and back. A physical exam revealed a three centimeter by two centimeter abrasion on the top right side of his head.

NYPD Documents

SPRINT

The SPRINT related to the incident (encl. 23A-B) indicates that at 6:47 p.m., two impact foot posts were present at § 87(2)(b) in Brooklyn, and that at 6:53 p.m., a foot post officer made an arrest at the location and Sector C and the conditions sergeant responded to the location.

Roll Call and Detail Roster Assignment Sheet

The 81st Precinct roll call and detail roster assignment sheet (encl. 24A-25) indicate that at the time of the incident, Sgt. Rogers was the impact conditions sergeant, PO Colombini and PO Koenke were assigned to Sector C, PO Morales and PO Ye were assigned prisoner transport, and PO Blatt and PO Quizhpi were assigned to adjacent 81st Precinct impact foot posts.

Command Log

The 81st Precinct command log (encl. 26) indicates at the time and place of incident, PO Blatt arrested § 87(2)(b) and that when § 87(2)(b) was brought to the stationhouse, his demeanor was irate and he had a small abrasion to his head.

AIDED

§ 87(2)(a) PHL § 18(6)

Arrest Photograph

§ 87(2)(b) arrest photograph (encl. 4) shows a bandage wrapped around his forehead.

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- As of October 24, 2011, neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim with the City of New York with regard to the incident (encl. 31M).

Civilians Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[redacted]
 - [redacted]
[redacted]
[redacted]
 - [redacted]
[redacted]
 - [redacted]
[redacted]
- [redacted]
[redacted]

Civilians CCRB History

- Neither [§ 87(2)(b)] nor [§ 87(2)(b)] have filed or been involved in any prior CCRB complaints (encl. 2C-D).

Subject Officers CCRB History

- PO Blatt has been a member of the service for three years and there are no substantiated CCRB allegations against him (encl. 2A).
- PO Quizhpi has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. 2B).

Conclusion

Identification of Subject Officers

PO Blatt and PO Quizhpi acknowledged their interaction with [§ 87(2)(b)] [§ 87(2)(b)] descriptions of the officers closely matches their respective pedigree information. [§ 87(2)(b)] alleged that the officer matching the pedigree of PO Blatt frisked him and struck him in the head inside the hallway of [§ 87(2)(b)] [§ 87(2)(g)]

[§ 87(2)(b)] alleged that an officer pushed her while she was trying to prevent the officers from removing [§ 87(2)(b)] from the building. [§ 87(2)(g)]

[§ 87(2)(b)] alleged that he was tripped to the ground by either PO Blatt or PO Quizhpi and that PO Quizhpi pushed his face into the ground while PO Blatt punched him in the head. [§ 87(2)(b)] said the actions of the officer that tripped [§ 87(2)(b)] were consistent with the officer identified by the investigation as PO Quizhpi. [§ 87(2)(g)]

Investigative Findings and Recommendations

Allegations Not Pleaded:

[§ 87(2)(g)]
[redacted]
[redacted]
[redacted]
[redacted]

Allegation A - Abuse of Authority: In front of § 87(2)(b) in Brooklyn, PO Jonathan Blatt frisked § 87(2)(b)

§ 87(2)(b) alleged that he was frisked by PO Blatt. PO Blatt denied frisking § 87(2)(b) and PO Quizhpi denied seeing PO Blatt do this. No witnesses that may have seen the frisk provided testimony. None of the police documentation, arrest paperwork or officer memo books indicate that § 87(2)(b) was frisked. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Allegation B - Force: Inside § 87(2)(b) in Brooklyn, PO Jonathan Blatt struck § 87(2)(b) with a blunt instrument.

§ 87(2)(b) alleged that while in the hallway of § 87(2)(b) PO Blatt struck him in the back of his head with an unknown object, causing him to lose consciousness and fall to the ground.

§ 87(2)(b) alleged that PO Blatt used a pair of handcuffs to strike § 87(2)(b) § 87(2)(b) § 87(2)(g) said the officer struck him on the front right side of his head. Medical records and § 87(2)(b) arrest paperwork show that he sought treatment for an abrasion on the front left side of his head, but not for any injury consistent with being struck with a blunt object in the back or right side of his head.

PO Blatt and PO Quizhpi recalled that § 87(2)(b) resisted arrest and pushed PO Quizhpi in an attempt to flee. The officers said they grabbed and pulled on § 87(2)(b) arms but denied that anyone struck him in the head. PO Blatt recalled that both officers pushed § 87(2)(b) to the floor. PO Quizhpi denied pushing him and recalled that § 87(2)(b) fell to the floor inexplicably.

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation C - Force: Inside § 87(2)(b) in Brooklyn, PO Favio Quizhpi used physical force against § 87(2)(b)

§ 87(2)(b) admitted trying to pull § 87(2)(b) away from the officers as they arrested him. She alleged that in response, PO Quizhpi pushed her, causing her to stumble backwards but not fall.

PO Blatt testified that § 87(2)(b) attempted to block him from initially handcuffing § 87(2)(b) but said he stepped around her and did not physically engage her. PO Quizhpi said that during the handcuffing, § 87(2)(b) interfered by pulling on his arms and shirt. PO Quizhpi said he responded by pulling himself away from § 87(2)(b) but denied pushing her or using any other force against her. PO Quizhpi also recalled that § 87(2)(b) tried to block the exit as the officers escorted § 87(2)(b) from the building, but he did not recall any officers using force to get past her.

Patrol Guide section 203-11 (enl. 1A-B) permits an officer to use the amount of force necessary to overcome a subject's resistance. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation D - Force: In front of § 87(2)(b) in Brooklyn, PO Quizhpi used physical force against § 87(2)(b)

§ 87(2)(b) alleged that as he was being escorted to the police car, either PO Blatt or PO Quizhpi tripped him to the ground, but he could not specify which. He also alleged that while he was on the ground in front of the building, PO Quizhpi held him down and pressed his face into the ground, scraping his forehead. However, § 87(2)(b) admitted that his recollection of this part of the incident was limited by the fact that he felt dazed after being unconscious. Medical records indicate that § 87(2)(b) had an abrasion on his forehead. § 87(2)(b) corroborated the allegation that PO Quizhpi tripped § 87(2)(b) and then pressed his face into the ground; § 87(2)(g)

PO Quizhpi said he did not recall who escorted § 87(2)(b) from the building and denied tripping or using any additional force against him. None of the interviewed officers recalled there being any difficulty escorting § 87(2)(b) to the police car once he was outside and none recalled additional force being used against § 87(2)(b) after he was handcuffed.

Allegation E - Force: In front of § 87(2)(b) in Brooklyn, PO Blatt used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after being tripped to the ground in front of the building, PO Blatt punched him twice in the head. However, as discussed above, § 87(2)(b) admitted he had a limited recollection of this part of the incident. Furthermore, § 87(2)(b) who testified that she watched an officer trip § 87(2)(b) to the ground, said she did not witness any officer punch him in the head.

PO Blatt denied escorting § 87(2)(b) out of the building and denied tripping or punching § 87(2)(b). As discussed above, none of the other officers recalled PO Blatt using any additional force against § 87(2)(b) after he was handcuffed. Officer statements and police documentation indicate that PO Blatt seriously lacerated his hand during the handcuffing of § 87(2)(b) § 87(2)(g)

Team: 5

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date